

## **TENTATIVE RULINGS**

**FOR: July 07, 2026**

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

**Remote appearances via Zoom are optional.** Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

### **Dept. A Zoom**

**Join by Video**

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

**Effective immediately, Department A no longer permits remote Zoom appearance by telephone.**

**Court Reporting Services** – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))**

**\*\* All matters originally set in Dept. B will be heard in Dept. A \*\***

**PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.**

**Estate of Christopher Matthew Gillespie**

**19PR000227**

FIRST AND FINAL ACCOUNT AND REPORT OF EXECUTOR AND PETITION FOR ITS SETTLEMENT AND FOR FINAL DISTRIBUTION

**TENTATIVE RULING:** The matter is CONTINUED to August 6, 2026, at 8:30 a.m. in Dept. B to allow counsel for Petitioner/Executor to discuss the estate and accounting with Objector/Beneficiary Ryan Gillespie and hopefully work toward a resolution. The clerk is directed to provide notice to the parties.

Objector/Beneficiary filed an objection to the Final Account on June 25, 2026, to which Petitioner/Executor replied on July 1, 2026. The Reply attempts to explain the concerns raised by Objector. The Reply further requests a 30-day continuance to allow time for communication with Executor and Beneficiary and attempts to resolve Beneficiary's objections informally. The request seems reasonable to the Court.

By July 30, 2026, Executor and Objector shall each, or jointly, file and serve supplemental briefing to apprise the Court of their resolution efforts.

The Final Distribution Hearing currently set for July 09, 2026, at 8:30 a.m. in Dept. B is VACATED as moot.

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**Estate of Maxine Berge Freitas**

**24PR000084**

**STATUS HEARING RE: FINAL DISTRIBUTION**

**TENTATIVE RULING:** An updated status report is on file. Based on the Court's review of the status report, the Court determines that continuation of administration is in the best interests of the estate and/or of interested persons. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to November 6, 2027, at 8:30 a.m. in Dept. A.

The Status Hearing may be vacated if, prior thereto, the personal representative files a petition for an order for final distribution. No later than 15 days prior to the next hearing, the personal representative shall file a status report. Pursuant to Probate Code section 12201, the status report shall include the following statement: "YOU HAVE THE RIGHT TO PETITION FOR AN ACCOUNT UNDER SECTION 10950 OF THE CALIFORNIA PROBATE CODE."

The Clerk is directed to provide notice to the parties.

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**Estate of Dorothy Unsicker**

**24PR000282**

**FINAL DISTRIBUTION HEARING**

**TENTATIVE RULING:** A status report is on file. Based on the Court's review of the status report, the Court determines that continuation of administration is in the best interests of the estate and/or of interested persons. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to July 07, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated if, prior thereto, the personal representative files a petition for an order for final distribution. The personal representative shall file a status report 10 days prior to the next hearing. The Clerk is directed to provide notice to the parties.